B. Covered SRO Forms

The Commission is requiring, as proposed, that the following forms be filed electronically on EDGAR:

Form	Filer Type	Amendments
Form 1: Application for, and Amendments to Application for, Registration as a National Securities Exchange or Exemption from Registration pursuant to section 5 of the Exchange Act	Exchange	Amend 17 CFR 249.1, including the form and instructions to the form, and 17 CFR 240.6a-1, 17 CFR 240.6a-2, and 17 CFR 240.6a-3 under the Exchange Act.
Form 1-N: Form and Amendments for Notice of Registration as a National Securities Exchange for the Sole Purpose of Trading Security Future Products Pursuant to section 6(g) of the Exchange Act	Exchange	Amend 17 CFR 249.10, including the form and instructions to the form, and 17 CFR 240.6a-4 under the Exchange Act.
Form X-15AA-1: Application for Registration as a National Securities Association or Affiliated Securities Association, Form X-15AJ-1: Amendatory and/or Supplementary Statements to Registration Statement of a National Securities Association or an Affiliated Securities Association, and Form X-15AJ-2: Annual Consolidated Supplement of a National Securities Association or an Affiliated Securities Association	Securities Association	Form X-15AA-1 (re-numbered as Form 15A) and the instructions to the form, and corresponding Exchange Act Rule 15Aa-1 (redesignated as Rule 15aa-1). Forms X-15AJ-1 and X-15AJ-2 (repealed and the information requirements incorporated into new Form 15A),[10] and corresponding Exchange Act Rule 15Aj-1 (renumbered as Rule 15aa-2).
Form CA-1: Application for Registration or for Exemption from Registration as a Clearing Agency and for Amendment to Registration Pursuant to the Exchange Act	Clearing Agency	The form and instructions to the form, and corresponding Exchange Act Rule 17ab2-1.

[10] See 17 CFR 249.802 and 803. The forms and instructions to the form are incorporated by reference into the Code of Federal Regulations.

Prior to these amendments, the Commission's regulatory framework required an entity seeking to be registered as a national securities exchange (or seeking an exemption from such registration based on limited volume), a national securities association, a clearing agency (or seeking an exemption from such registration), and a national securities exchange solely for the purpose of trading futures on individual stocks or on narrow-based stock indexes[11] ("Security Futures Product Exchange") to file, in a paper-based format, certain forms that are mandated by rules under the Exchange Act. Registered national securities exchanges, registered national securities associations, registered clearing agencies, and registered Security Futures Product Exchanges (collectively, SROs), as well as exempt exchanges and exempt clearing agencies (together with prospective SROs, "Filers"), were also required to submit paper-based amendments to their respective forms. The Commission's amendments modernize the filing process for these various forms by requiring that the forms and information contained therein be submitted to the Commission electronically, thereby removing the burden of preparing and submitting paper forms by the Filers, and of receiving, acting upon, and maintaining the paper forms by the Commission and its staff.

In particular, as required by Rule 6a-1, Rule 6a-2, and Rule 6a-3 under the Exchange Act, a prospective exchange must file on Form 1 an application for registration as a national securities exchange (or for an exemption from the requirement to register as a national securities exchange based on limited volume), and, once registered, the exchange must file as an amendment to its Form 1 certain updating information, as well as certain supplemental material and reports. In addition, as required by Rule 6a-4 under the Exchange Act, a prospective exchange may register

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[11] Futures on individual stocks or on narrow-based stock indexes are hereinafter referred to as "security futures products."

as a Security Futures Product Exchange by filing Form 1-N ("notice registration") if it satisfies certain prerequisites and must file amendments to its initial filing and certain supplemental materials on Form 1-N as well. An applicant for registration as a national securities association must file a registration statement with the Commission on Form X-15AA-1, and every association applying for registration or registered as a national securities association must file amendments and supplements to its registration statement with the Commission on Form X-15AJ-1 and annual supplements to its registration statement with the Commission on Form X-15AJ-2. Moreover, as required by Rule 17ab2-1 under the Exchange Act, a prospective clearing agency must file on Form CA-1 an application for registration as a clearing agency (or for an exemption from such registration), and both registered and exempt clearing agencies must file amendments to their Form CA-1 as necessary. In each of the foregoing situations, these forms were required to be submitted to the Commission in a paper-based format. As a result, the prospective and existing SROs, exempt exchanges, and exempt clearing agencies have incurred the costs of completing their respective paper-based forms, making the requisite number of copies, and submitting the original version and copies to the Commission.

The Commission also is rescinding the following form, as proposed, and instead requiring that the information currently contained in the form be publicly posted on the relevant SRO's internet website:

Form	**Filer Type**	**Amendment**
Form 19b-4(e): Information Required of a Self-Regulatory Organization Listing and Trading a New Derivative Securities Product Pursuant to Rule 19b-4(e) Under the Exchange Act	SRO	Rescind the form and instructions to the form and amend 17 CFR 240.19b-4(e) ("Rule 19b-4(e)").

Previously, Rule 19b-4(e) under the Exchange Act required an SRO to submit to the Commission reports regarding the listing and trading of new derivative securities products on Form 19b-4(e) in a paper-based format. As with the forms discussed above in this section, SROs incurred the costs of completing the paper-based form, making the requisite number of copies, and submitting the original version and copies to the Commission.

C. Covered Supplementary Materials

Rule 17a-22 requires a registered clearing agency to file with the Commission three copies of any material within 10 days after issuing, or making generally available, such materials to its participants or to other entities with whom it has a significant relationship.[12] A registered clearing agency for which the Commission is not the appropriate regulatory agency is required at the same time to file one copy of such material with its "appropriate regulatory agency" ("ARA").[13] While the rule continues to support the Commission's oversight of clearing agencies, the rule is being modernized to better reflect the ways in which the registered clearing agencies now generally distribute the supplemental materials required under the rule, as discussed further below.

Since the Commission adopted Rule 17a-22 in 1980, technology has evolved significantly and the internet has played an increasingly vital role in information distribution.[14]

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12 See 17 CFR 240.17a-22. Such materials are hereinafter referred to as "supplementary materials."

13 See id. When used with respect to a clearing agency, the term "appropriate regulatory authority" is defined under section 3(a)(34)(B) of the Exchange Act to mean broadly the Comptroller of the Currency, the Board of Governors of the Federal Reserve System ("Federal Reserve"), or the Federal Deposit Insurance Corporation, depending on the type of bank that is acting as a registered clearing agency. See 15 U.S.C. 78c(a)(34).

14 See, e.g., The Impact of Recent Technological Advances on the Securities Market (Sept. 1997), available at https://www.sec.gov/news/studies/techrp97.htm. In this report, the Commission stated that it was mindful of the benefits of increasing use of new technologies, such as the internet, to access information more efficiently.

During this period, the Commission has encouraged the dissemination of information electronically via the internet, as well as through the use of automated systems and other services provided by clearing agencies.[15] In general, transitioning from a requirement to file paper with the Commission to an electronic filing requirement can help improve efficiency and transparency in the securities markets for registered clearing agencies, their participants, and the general public. Most recently, under the Updated Staff Statement described above,[16] registered clearing agencies have established alternate arrangements to satisfy the requirements of Rule 17a-22 that do not require the submission of paper filings.

The Commission is now amending Rule 17a-22 to eliminate the paper filing requirement altogether and require a registered clearing agency to post any supplementary materials to its internet website, as discussed further below.[17] The amended rule increases efficiency in the distribution of supplementary materials required under the rule and promotes transparency regarding their contents, as these supplementary materials are intended to be made generally available to participants in the clearing agency or other categories of market participants with whom the clearing agency has a significant relationship.

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[15] Id. See also, e.g., Commission Interpretation: Confirmation and Affirmation of Securities Trades; Matching, Exchange Act Release No. 39829 (Apr. 6, 1998), 63 FR 17943 (Apr. 18, 1998), available at https://www.sec.gov/rule-release/34-39829; Commission Interpretation: Use of Electronic Media, Exchange Act Release No. 42728 (Apr. 28, 2000), 65 FR 25843 (May 4, 2000), available at https://www.sec.gov/rules/interp/34-42728.htm; Press Release: SEC Provides Guidance to Open Up Use of Corporate Web Sites for Disclosures to Investors (July 30, 2008), available at https://www.sec.gov/news/press/2008/2008-158.htm.

[16] See supra note 7.

[17] See generally infra section III.

D. Filings by Broker-Dealers, OTC Derivatives Dealers, SBSDs, and MSBSPs

Form	Filer Type	Amendment
Form X-17A-5 Part III: Information Required Pursuant to Rules 17a-5, 17a-12, and 18a-7 under the Exchange Act	Broker-Dealer, Security-Based Swap Dealer, Major Security-Based Swap Participant	Require the form to be filed on EDGAR.
Form 17-H: Risk Assessment Report for Brokers and Dealers	Broker-Dealer	Require the form to be filed on EDGAR.

Certain forms and other filings that the Commission is requiring to be filed on EDGAR by broker-dealers, OTC derivatives dealers, SBSDs, and MSBSPs are appropriate for electronic filing because many of them are voluminous (in number, size, or both) and some of them contain certain information that must be disclosed publicly.[18] Electronic conversion and/or publication of these filings by Commission staff, to make them available to the public and/or Commission staff, can be labor intensive and time consuming. Requiring submission of these filings on the Commission's established EDGAR filing system will facilitate more efficient transmission, analysis, dissemination, storage, and retrieval of information, and will benefit the Commission, the submitting entities, investors, and other market participants.

The Commission is requiring the existing EDGAR system to be used for certain filings because Form X-17A-5 Part III and Form 17-H are already permitted to be filed on EDGAR. In turn, this will minimize the burden of transitioning to mandatory filing on EDGAR.

E. Other Forms, Reports, or Notices

Form, Report or Notice	Filer/Submitter Type	Amendment
Form 17a-19: Information Required of National Securities Exchanges and Registered National Securities Associations	National securities exchanges, national securities associations	Require the form to be filed on EDGAR.

[18] See generally infra section IV.

Pursuant to Section 17 and 19 of the Securities Exchange Act of 1934 and Rule 17a-19 Thereunder, Report of Change in Membership Status		
Notices (and any withdrawals of notices) filed pursuant to Rule 3a71-3(d)(1)(vi)	Certain registered SBSDs or registered brokers that meet certain capital and other requirements	Require the notices and withdrawals to be filed on EDGAR; require withdrawal in specified circumstances.
Notices (and any amendments to the notices) of Security-Based Swap Valuation Disputes pursuant to Rule 15fi-3(c)	SBS Entities	Require the notices (and any amendments to the notices) to the Commission to be submitted on EDGAR using structured data; specify that notices (including amendments) required to be provided to any applicable prudential regulator be in a form and manner acceptable to such prudential regulator.
Compliance Reports Submitted to the Commission pursuant to Rule 15fk-1(c)(2)(ii)(A)	SBS Entities	Require reports to be submitted on EDGAR in a structured data language (Inline eXtensible Business Reporting Language ("Inline XBRL")).

The Commission is adopting amendments requiring the EDGAR system to be used for the following notices, reports, and filings: (1) notices made pursuant to Rule 17a-19 under the Exchange Act and on accompanying Form X-17A-19; (2) notices made pursuant to Rule 3a71-3(d)(1)(vi); (3) notices made to the Commission pursuant to Rule 15fi-3(c); and (4) reports made pursuant to Rule 15fk-1(c)(2)(ii)(A) under the Exchange Act. Previously, the notices made pursuant to Rule 17a-19 under the Exchange Act and on accompanying Form X-17A-19 were submitted via paper.[19] The notices made pursuant to Rule 3a71-3(d)(1)(vi) were previously filed

[19] See infra section V.A.

via email.[20] The notices made to the Commission pursuant to Rule 15fi-3(c) were previously submitted either via email or EDGAR, at the SBS Entity's option, and the reports required under Rule 15fk-1(c)(2)(ii)(A) were previously submitted via email, mail, or EDGAR, at the SBS Entity's option.[21]

F. Structured Data Requirements

The Commission is requiring, as proposed, certain of the disclosures required by the following filings to be provided in a structured, machine-readable data language: (1) the Covered SRO Forms; (2) the information required under Rule 19b-4(e); (3) Form X-17A-19; (4) the annual reports (and related annual filings) filed by broker-dealers (including OTC derivatives dealers) and SBS Entities on Form X-17A-5 Part III; (5) the risk assessment reports filed by certain broker-dealers on Form 17-H; and (6) the notices and reports provided to the Commission by SBS Entities under Exchange Act Rules 15fi-3(c) and 15fk-1(c)(2)(ii)(A), respectively (together, the "Structured Documents").[22]

Specifically, the Commission is requiring, as proposed, the report required by Exchange Act Rule 15fk-1(c)(2)(ii)(A) and portions of Form 1, Form CA-1, Form 17-H, and Form X-17A-5 Part III and related annual filings to be provided in the Inline XBRL structured data language. The Commission is also requiring, as proposed, Form X-17A-19, the notice to the Commission

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20 See infra section V.B.

21 See infra section V.C. and V.D. Rule 15fi-3(c) requires that SBS Entities "*notify* the Commission" (emphasis added). See infra section V.C.1. Requiring these notices and amendments to be submitted to the Commission via EDGAR does not cause them to be deemed filed for purposes of the Exchange Act. See, e.g., 15 U.S. Code 78r. 17 CFR 240.15fk-1(c) ("Rule 15fk-1(c)") requires that the chief compliance officer of an SBS Entity prepare and sign an annual compliance report that "shall [b]e submitted to the Commission." 17 CFR 240.15fk-1(c) (emphasis added). Requiring these reports to be submitted via EDGAR does not cause the report to be deemed filed for purposes of the Exchange Act.

22 For certain affected documents, as proposed, only some aspects are required to be provided in a structured data language. For example, only the execution pages of Form 1-N and Form 15A are required to be provided in a structured data language. See infra section VII.A.

(and any amendments to the notices) required by Exchange Act Rule 15fi-3(c), and portions of Form 1-N, Form 15A, Form 1, Form CA-1, Form 17-H, and Form X-17A-5 Part III and related annual filings to be provided in machine-readable, eXtensible Markup Language ("XML")-based data languages specific to those documents ("custom XMLs"). As proposed, these structured documents will be filed or submitted, as appropriate to each document, on EDGAR.[23]

In addition, the Commission is requiring, as proposed, SROs to electronically post the information required under Rule 19b-4(e) using a custom XML-based data language (also referred to as a "schema") that the Commission will create and publish on its website for SROs to use.[24] The Commission is also requiring, as proposed, SROs to post a rendered Portable Document Format ("PDF") version of the custom XML document using a PDF renderer that the Commission will also create and publish on its website for SROs to use.[25]

As discussed in further detail below, the structured data requirements will facilitate access to the disclosures by users (e.g., investors, market participants, analysts, and the Commission), enabling more efficient retrieval, aggregation, and comparison across different filers and time periods, as compared to an unstructured PDF, HyperText Markup Language ("HTML"), or American Standard Code for Information Interchange ("ASCII") requirement.[26]

The Commission is requiring, as proposed, some disclosures to be structured in Inline XBRL and other disclosures to be structured in custom XML. While Inline XBRL is well-suited

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23 The details of the structured data requirements, including the specific portions of affected documents that will be structured in Inline XBRL versus custom XML, are discussed in section VII.A below.

24 This requirement will mirror the existing requirement for registered broker-dealers to electronically post reports containing order routing information using the most recent versions of the XML schema and the associated PDF renderer as published on the Commission's website. See 17 CFR 242.606. The custom XML schema and PDF renderer for Rule 606 reports are available at https://www.sec.gov/structureddata/dera_taxonomies.

25 See id.

26 See infra sections VII.A and X.C.

for certain types of content—such as financial statements and extended narrative discussions—other types of content can be readily captured using custom XML data languages that yield smaller file sizes than Inline XBRL and thus facilitate more streamlined data processing. Such custom XML languages also enable EDGAR to generate fillable web forms that permit affected entities to input disclosures into form fields rather than encode their disclosures in custom XML themselves, thus easing compliance burdens on affected entities.[27] Finally, certain of the structured documents—Form X-17A-5 Part III and Form 17-H—were previously partially subject to custom XML structured data requirements when voluntarily filed on EDGAR. For these forms, the Commission is requiring, as proposed, the same custom XML requirements to minimize the associated burdens on registrants that were previously using these languages for these forms.

One commenter stated that the Commission "should make clear that the [Proposing Release] would not modify the content and format of reports that substituted compliance firms are required to submit."[28] The Commission's orders granting substituted compliance

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[27] See infra section X.E.3 (discussing and responding to one commenter's statement that XBRL should be used for all Structured Documents).

[28] See Letter from Kyle Brandon, Managing Director and Head of Derivatives Policy, Securities Industry and Financial Markets Association (May 22, 2023) ("SIFMA 5/22/2023 Letter") at 3. See also SIFMA 5/22/2023 Letter at 7. Exchange Act Rule 3a71–6 (17 CFR 240.3a71-6) provides a framework whereby non-U.S. SBS Entities may satisfy certain requirements under Exchange Act section 15F by complying with comparable regulatory requirements of a foreign jurisdiction. Because substituted compliance does not constitute exemptive relief, but instead provides an alternative method by which non-U.S. SBS Entities may comply with applicable Exchange Act requirements, the non-U.S. SBS Entities remain subject to section 15F and the rules thereunder. See, e.g., Amended and Restated Order Granting Conditional Substituted Compliance in Connection With Certain Requirements Applicable to Non-U.S. Security-Based Swap Dealers and Major Security-based Swap Participants Subject to Regulation in the Federal Republic of Germany; Amended Orders Addressing Non-U.S. Security-Based Swap Entities Subject to Regulation in the French Republic or the United Kingdom; and Order Extending the Time To Meet Certain Conditions Relating to Capital and Margin, Exchange Act Release No. 93411 (Oct. 22, 2021), 86 FR 59797, 59798 (Oct. 28, 2021).